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Letter to the Jewish Caucus Concerning the VISION Act

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Dear Assemblymembers Jesse Gabriel, Chair of the Jewish Caucus, and all members of the Jewish Caucus,

Next week, the Members of the California Assembly will have the opportunity to vote on a vital piece of legislation called the VISION Act, AB 937 by Assemblymember Wendy Carrillo.

I am one of dozens of Rabbis across the state who have been advocating strongly for this bill, as part of a broad coalition of more than 90 organizations. And I am hopeful that our legislators, including members of the Jewish Caucus, will embrace the VISION Act when it comes up for a vote.

At its essence, the VISION Act is about living up to the sacred standard of equal treatment under the law. Is this not the very heart of Jewish justice?

Yet under the state of California's current policy, when an immigrant completes their sentence and has done everything we as a society have asked them to do to earn their release, they are cruelly confronted with an additional, second punishment. Instead of returning home to their families or beginning their reentry plans, state officials transfer them to Immigration and Customs Enforcement (ICE). There, they undergo another demeaning and indefinite incarceration process in ICE detention centers that are rampant with inhumane conditions before they are often deported.

The VISION Act would end this "double punishment" and ensure that an immigrant, like all others who call California home, is able to reunite with their loved ones and rebuild their lives.

I offer these words in the spirit of faith and hope for equal treatment of gerim/refugees and immigrants on par with those who are secure in their national status. Our most sacred Jewish law reminds us: We must remember we were enslaved by oppression, and therefore there shall be one law for the refugee/immigrant and the citizen. This remembrance is repeated in 36 different ways throughout the Torah and is the fundamental principle that informs all of Jewish law.

Our spiritual tradition is rooted in sacred protocols or mitzvot that are meant to ensure well-being and safety for all. We are asked to stand up for the most vulnerable to neglect and unfair treatment among us by applying the law equally. Even those who trespass are to be forgiven whole-heartedly and completely once they have undergone communal teshuvah, that is, paid the penalty the law requires and demonstrated repentance.

Is it not a violation of this core principle to cause or allow suffering and intergenerational harm by imposing a carceral system in which a person can never fully pay a penalty or achieve redemption, even after meeting all the strict standards of parole and release imposed by the State of California?

Yet this is exactly what our state's current policy of automatically transferring people who have served their sentences to ICE represents.

Consider the story of Gabriela Solano, a survivor of domestic violence who came to the United States as a permanent resident at age 2. This year, Gabby completed a 22-year sentence in a state prison after unjustly serving time for the actions of her abusive boyfriend and his acquaintance, who committed a murder. During her time in prison, Gabby took over 1,000 hours of rehabilitative classes, became a substance abuse counselor, and earned 2 degrees. Yet the state of California transferred her to ICE detention in March, where she remains.

Our legislators hold considerable power over the lives of families who have already suffered profoundly. Are we not asked to walk a divine path by demonstrating healing compassion?

By supporting the VISION Act, our legislators can support equality and fairness for all.

Where in the great body of Jewish law and custom is it written, "When you impose punishment upon the most vulnerable among us, do not release them from their debt, do not provide forgiveness, and treat them unequally under the law?" That is not a Jewish approach.

I hope that our legislators will make a decision in the spirit of compassion and healing. Our state's current policies only result in more trauma and family separation for war refugees and immigrants who have overcome the violence of the past. With the VISION Act, we can end this suffering, and instead embrace our neighbors who have committed to a healing and productive future.

I applaud Senators Wiener and Newman for co-authoring this urgent legislation.

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